

24NNCV06141 24NNCV06141

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Case Number: 24NNCV06141 Hearing Date: July 10, 2026 Dept: D

TENTATIVE RULING

Calendar: 11

Date: July 10, 2026

Case No: 24NNCV06141 Trial Date: April 12, 2027

Case Name: Sydnor v. Look Dine-In Cinema, et al.

MOTION TO QUASH DEFENDANT'S PRODUCTION OF BUSINESS RECORDS

[CCP § 1987.1]

Moving Party: Plaintiff, Cole Sydnor

Responding Party: Defendants, Look Cinemas VII, LLC and Look Brands, LLC

Deficiencies to Note: Improperly combined discovery motion

RELIEF REQUESTED:

An order quashing 17 deposition subpoenas for production of medical records from multiple entities.

CAUSES OF ACTION: from Complaint

1) Negligence

2) Premises Liability

3) Loss of Consortium

SUMMARY OF FACTS:

Cole Sydnor ("Cole") is, and at all times relevant to this action has been, quadriplegic. Cole is married to Charisma Sydnor ("Charisma") (collectively, "Plaintiffs"). On December 15, 2022, Plaintiffs were guests at Look Dine-In Cinema-Glendale, a dine-in movie theater owned, operated, and/or maintained by Look Cinemas II, LLC and Look Cinemas VII, LLC (collectively, "Defendants"). The Complaint alleges that Plaintiffs turned on the heat function of their seats for the duration of the movie. Plaintiffs allege that the heating temperature on the seats was higher than usual and that Cole sustained second degree burns. Being unable to feel the burning sensation to his skin, Cole did not know that he had been burned until the next morning. Plaintiffs allege that as a direct and proximate result of the incident, Cole sustained injuries including, but not limited to, injuries to his buttocks and thighs.

ANALYSIS:

A deposition subpoena may command only the production of business records without attendance at a deposition from a nonparty. (CCP, § 2020.020, subd. (b).) A deposition subpoena that requires only the production of documents "shall designate the business records to be produced either by specifically describing each individual item or by reasonably particularizing each category of item..." (CCP, § 2020.410, subd. (a).) A deposition subpoena for the production of business documents need not be accompanied by an affidavit of good cause and must be directed at the custodian of records or other person qualified to certify those documents. (CCP, § 2020.410, subd. (c).) The responding party must comply with a deposition subpoena on a date that is no earlier than 20 days after the issuance or 15 days after service of the subpoena, whichever is later. (CCP, § 2020.410, subd. (c).)

A deposition subpoena is enforceable under Code of Civil Procedure section 1987.1. (CCP, § 2020.030.) After notice and opportunity to be heard, the Court may issue an order quashing the subpoena entirely, modifying it, or directing compliance with it upon terms and conditions as the Court may declare. (CCP, § 1987.1, subd. (d).) Courts also have the authority to protect the responding person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person. (CCP, § 1987.1, subd. (d).)

Plaintiffs move to quash the following subpoenas for medical records:

1. 470113; TAG 18 – Blue Shield of California
2. 470113; TAG 19 – Blue Cross Blue Shield of Minnesota
3. 470113; TAG 20 – City of Glendale Fire Department
4. 470113; TAG 21 – Glendale Memorial Hospital
5. 470113; TAG 22 – Glendale Memorial Hospital
6. 470113; TAG 23 – Glendale Memorial Hospital

7. 470113; TAG 24 – UC San Diego Medical Center
8. 470113; TAG 25 – UC San Diego Medical Center
9. 470113; TAG 26 – UC San Diego Medical Center
10. 470113; TAG 27 – UCLA Health Systems
11. 470113; TAG 28 – UCLA Health Systems
12. 470113; TAG 29 – Dr. Donald Ganley
13. 470113; TAG 30 – Dr. Donald Ganley
14. 470113; TAG 31 – Dr. Donald Ganley
15. 470113; TAG 32 – City of Glendale Fire Department
16. 470113; TAG 33- City of Glendale Fire Department
17. 470113; TAG34 – UCLA Health Physicians Billing Office

As a preliminary matter, the Court notes that multiple motions should not be combined into a single filing. (See Govt. Code, § 70617 subd. (a)(4) [setting forth the required filing fee for each motion, application, or any other paper or request requiring a hearing]; see also Weil & Brown, *Civil Procedure Before Trial*, [8:1140.1] at 8F-60 (The Rutter Group 2011)) ["Motions to compel compliance with separate discovery requests ordinarily should be filed separately."] The California Rules of Court only permit the combining of the papers in support of the same motion. (CRC, rule 3.1112(c).) Each motion requires a separate notice, a motion, and memorandum in support. (CRC, rule 3.1112(a).) Moreover, combining motions deprives the Court of filing fees it is otherwise entitled to collect. Filing fees are jurisdictional and it is mandatory for court clerks to demand and receive them. (See *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460.)

Here, Plaintiffs have filed a single motion to quash 17 separate discovery requests. This is improper. Regrettably, Plaintiffs must file a separate motion for each discovery request.

To the extent it may assist the parties in resolving their discovery dispute without judicial intervention, the Court reminds the parties that a plaintiff has a reasonable expectation of privacy in their medical information. (See *John B. v. Superior Court* (2006) 38 Cal.4th 1177, 1198 [finding medical records are protected by the California right to privacy].) Medical history is protected by the California constitutional right to privacy. (See *John B.*, supra 38 Cal.4th at p. 1198.) Yet the privacy protection is not absolute; medical histories are discoverable to the extent the need for discovery outweighs the patient's privacy concerns. (Id. at p. 1199.) All medical histories relating to a plaintiff's claimed injuries in a personal injury action are discoverable. (See Evid. Code, §§ 996, 1016; *Britt v. Sup.Ct. (San Diego Unified Port Dist.)* (1978) 20 Cal.App.3d 844, 864.) However, medical records pertaining to an unrelated condition are discoverable on a showing of "good cause" if the condition is relevant to the issue of proximate causation. (See Evid. Code, § 999; *Slagle v. Superior Court* (1989) 211 Cal.App.3d 1309, 1313.) Accordingly, Defendants may only discover injuries or conditions not directly caused by the incident if they provide good cause for doing so (i.e. by demonstrating the injury is relevant to proximate causation).

The Court strongly encourages the parties to continue meeting and conferring regarding the discovery requests at issue, keeping the above principles in mind. If the parties are unable to reach a compromise on the discovery requests, Plaintiff may file separate motions as to each subpoena that remains at issue and may seek any sanctions that are warranted.

RULING:

Plaintiff Cole Sydnor's Motion to Quash Deposition Subpoenas is DENIED, without prejudice.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.